CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E165F2E4C
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN PART

From: Kay Mann <kay.mann@enron.com>
Sent: Tue, 21 Nov 2000 01:20:00 -0800 (PST)
To: Boyd J. Springer <bjspringer@jonesday.com>
Cc: Gregg.Penman@enron.com <gregg.penman@enron.com>
Subject: Re: Master Sales

Is it reasonable to expect that Enron as well as Peoples will be involved in the preliminary meetings?

"Boyd J. Springer" <bjspringer@JonesDay.com> on 11/21/2000 09:13:34 AM
To: Gregg.Penman@enron.com
cc: kay.mann@enron.com

Subject: Re: Master Sales

Assuming there is no third party intervention, the approval time will depend entirely on Staff's approach. In the last year, I handled one affiliated interest agreement approval, which required only five weeks from filing to the time of the Order. Staff viewed the agreement as non-contoversial and wanted to dispose of the matter quickly. In another case, with staff copperation, the time from filing to approval (expected today), was nine weeks. On the other hand, when staff perceives an actual or potential issue, cases can drag on for months. I am handling one approval proceeding (involving acquisition of a small water utility system) which is expected to require about nine months to complete. In that case, staff argued that it needed 3-4 months to complete discoverey and prepare its direct evidence. Time was also included for two separate rounds of testimony (which is standard at the ICC), the hearing, briefing, issuance of Examiner's order, and filing of Exceptions and Replies. If Staff seeks to schedule all of the available procedural steps (which it can do if it so chooses), it is difficult to complete a case of this type in less than 6 months. A realistic time frame for a contested case would be 5-9 months. To avoid this, it is important to meet with the staff early on and resolve their concerns informally. This should be done, if possible, before the first scheduling conference (likely to be held about 3 weeks after the Petition is filed). If agreement is not reached beofre the first conference with the Hearing Examioner, the established schedule for the case should build in one or more early status conferences which provide the opportunity to present a settlement and resolve the matter at an early stage.

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